

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO**

Civil Action no. 14-cv-02565-RM-MJW

WELLS FARGO INSURANCE SERVICES
USA, INC.,

Plaintiff,

v.

GLENN W. MCQUATE,
PAUL PROUTY, and
MARY WONG,

Defendants.

VERDICT FORM

You are instructed to answer the following questions. You must apply the law in the instructions that the Court gave you to the facts that were proved by the evidence. You must all agree on your answer to each question and you must all sign the completed form on the signature lines.

ANSWERS

We, the jury, present our answers to questions submitted by the Court, to which we have all agreed:

PART I

GLENN MCQUATE

1. Do you find in favor of the Plaintiff, Wells Fargo Insurance Services USA, Inc., and against the Defendant Glenn McQuate on its claim of misappropriation of trade secrets under Instruction No. 16? (Yes or No)

ANSWER: NO

2. Do you find in favor of the Plaintiff, Wells Fargo Insurance Services USA, Inc., and against the Defendant Glenn McQuate on its claim of breach of contract under Instruction No. 21? (Yes or No)

ANSWER: NO

3. Do you find in favor of the Plaintiff, Wells Fargo Insurance Services USA, Inc., and against the Defendant Glenn McQuate on its claim of breach of the duty of loyalty under Instruction No. 32? (Yes or No)

ANSWER: NO

4. Do you find in favor of the Plaintiff, Wells Fargo Insurance Services USA, Inc., and against the Defendant Glenn McQuate on its claim of tortious interference with prospective business advantage under Instruction No. 37? (Yes or No)

ANSWER: NO

5. Do you find in favor of the Plaintiff, Wells Fargo Insurance Services USA, Inc., and against the Defendant Glenn McQuate on its claim of intentional interference with contracts under Instruction No. 43? (Yes or No)

ANSWER: NO

6. Do you find in favor of the Plaintiff, Wells Fargo Insurance Services USA, Inc., and against the Defendant Glenn McQuate on its claim of civil conspiracy under Instruction No. 52? (Yes or No)

ANSWER: NO

PAUL PROUTY

7. Do you find in favor of the Plaintiff, Wells Fargo Insurance Services USA, Inc., and against the Defendant Paul Prouty on its claim of misappropriation of trade secrets under Instruction No. 16? (Yes or No)

ANSWER: NO

8. Do you find in favor of the Plaintiff, Wells Fargo Insurance Services USA, Inc., and against the Defendant Paul Prouty on its claim of breach of contract under Instruction No. 22? (Yes or No)

ANSWER: NO

9. Do you find in favor of the Plaintiff, Wells Fargo Insurance Services USA, Inc., and against the Defendant Paul Prouty on its claim of breach of the duty of loyalty under Instruction No. 33? (Yes or No)

ANSWER: NO

10. Do you find in favor of the Plaintiff, Wells Fargo Insurance Services USA, Inc., and against the Defendant Paul Prouty on its claim of tortious interference with prospective business advantage under Instruction No. 38? (Yes or No)

ANSWER: NO

11. Do you find in favor of the Plaintiff, Wells Fargo Insurance Services USA, Inc., and against the Defendant Paul Prouty on its claim of intentional interference with contracts under Instruction No. 44? (Yes or No)

ANSWER: NO

12. Do you find in favor of the Plaintiff, Wells Fargo Insurance Services USA, Inc., and against the Defendant Paul Prouty on its claim of civil conspiracy under Instruction No. 53? (Yes or No)

ANSWER: NO

MARY WONG

13. Do you find in favor of the Plaintiff, Wells Fargo Insurance Services USA, Inc., and against the Defendant Mary Wong on its claim of misappropriation of trade secrets under Instruction No. 16? (Yes or No)

ANSWER: NO

14. Do you find in favor of the Plaintiff, Wells Fargo Insurance Services USA, Inc., and against the Defendant Mary Wong on its claim of breach of contract under Instruction No. 25 or No. 26? (Yes or No)

ANSWER: NO

15. Do you find in favor of the Plaintiff, Wells Fargo Insurance Services USA, Inc., and against the Defendant Mary Wong on its claim of breach of the duty of loyalty under Instruction No. 34? (Yes or No)

ANSWER: NO

16. Do you find in favor of the Plaintiff, Wells Fargo Insurance Services USA, Inc., and against the Defendant Mary Wong on its claim of tortious interference with prospective business advantage under Instruction No. 36? (Yes or No)

ANSWER: NO

17. Do you find in favor of the Plaintiff, Wells Fargo Insurance Services USA, Inc., and against the Defendant Mary Wong on its claim of intentional interference with contracts under Instruction No. 45? (Yes or No)

ANSWER: NO

18. Do you find in favor of the Plaintiff, Wells Fargo Insurance Services USA, Inc., and against the Defendant Mary Wong on its claim of civil conspiracy under Instruction No. 54? (Yes or No)

ANSWER: NO

If you answered all of the above questions “No,” then STOP HERE, go to the end of the Verdict Form, and sign and date as indicated.

If on the other hand, you answered “Yes” to any or all of the above questions, THEN ANSWER THE FOLLOWING QUESTIONS.

PART II

19. Plaintiff is awarded actual damages against Defendants, if any, in the following amounts
(you should answer "0" if you determine there were none):

Against Defendant Glenn McQuate: \$ _____

Against Defendant Paul Prouty: \$ _____

Against Defendant Mary Wong: \$ _____

PART III

20. Do you find that the Plaintiff has proved beyond a reasonable doubt its claim for punitive damages against any Defendant? (Yes or No)

ANSWER: _____

If you answered Question No. 20 "No," then sign and date the verdict form. If you answered "Yes," state amount of punitive damages that you determine the Plaintiff should recover, and against which Defendant.

Against Defendant Glenn McQuate: \$ _____

Against Defendant Paul Prouty: \$ _____

Against Defendant Mary Wong: \$ _____

PLEASE SIGN AND DATE THIS FORM.

DATED: November 4, 2016